

Court No. - 2

Case :- WRIT - C No. - 19823 of 2012

Petitioner :- Abdul Waheed

Respondent :- Smt. Fatima Begum And Others

Petitioner Counsel :- Syed Mahmood

Respondent Counsel :- Shobhit Dube

Hon'ble Sudhir Agarwal,J.

1. The petitioner has assailed the order passed by Permanent Lok Adalat allowing application of respondent no. 1 for grant of electric connection by respondents no. 2 and 3.

2. Learned counsel for the petitioner submitted that respondent no. 1 is not a valid owner of house and, therefore, the connection could not have been granted. He placed reliance on Regulation 3 of Electricity Supply (Consumers) Regulations, 1984 (hereinafter referred to as the "Regulations, 1984").

3. Firstly, those regulations have no application after enforcement of Electricity Act, 2003 (hereinafter referred to as the "Act, 2003") and Electricity Supply Code, 2005 framed in exercise of powers conferred by Section 50 and 181 read with Sections 43 to 48, 50, 55-59 of the Act, 2003.

4. Further even Regulation 3(i)(b) of Regulations, 1984 reads as under:

"3(i)(b) Any applicant, who is not the owner of the premises, shall obtain a "no objection certificate" from the owner of the premises he occupies, on his requisition form. The responsibility for its authenticity will be on the applicant. Connection released to the application on such certificate which are found fake will be liable to disconnection. If the applicant, who is not the owner of the premises, fails to obtain the "No objection certificate" from the owner of the premises, then he shall, if so required by the Board, give proof of his being in lawful occupation of the premises and also execute an indemnity bond indemnifying the Board, against any losses on account of disputes arising out of the supply of electrical energy to the occupant."

5. It also talks of the lawful occupation of premises and where the owner of premises decline to grant "no objection certificate", the person who is in lawful possession of premises in question may furnish indemnity bond indemnifying the Board whereafter the electrical connection could have been given. Here there is nothing on record to show that respondent no. 1 is not in the lawful occupation of premises in question and

Permanent Lok Adalat has also found that she was in lawful possession in the premises in question in respect where to the respondent no. 1 has also produced evidence, like, ration card, electric connection card, documents of education of children and Nagar Palika water tax receipt.

6. In the circumstances, no interference is called for in the impugned order.
Dismissed.

Order Date :- 24.4.2012

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